

Terms of Service — Apricotter

Last Updated: [Date] **Effective Date:** [Date]

1. Acceptance of Terms

By clicking "I Agree," "Create Account," or similar button during registration, you acknowledge that you have read, understood, and agree to be bound by these Terms of Service ("Terms") and our Privacy Policy, which are incorporated herein by reference.

If you do not agree to these Terms, you must not create an account or use the Service.

You must be at least 18 years of age to use the Service. By affirmatively accepting these Terms, you represent and warrant that you are 18 years of age or older. If Apricotter discovers that a user is under 18, your account will be immediately terminated.

UI Note: The signup page must show "By clicking Create Account you agree to our [Terms of Service] and [Privacy Policy]" directly adjacent to the button — not in a footer.

2. Eligibility

The Service is available only to residents of the United States. To use the Service, you must have an active publishing presence on the Amazon Kindle Direct Publishing (KDP) platform or otherwise have source content sufficient to enable the Service. Apricotter reserves the right to verify eligibility and reject any application at its sole discretion following human review.

3. Description of Service

Apricotter provides digital content production and distribution services. This includes creation, scheduling, and publication of social media content on platforms including but not limited to Facebook, Instagram, and TikTok. **All content is subject to Client**

approval before publication. No content will be scheduled or posted without explicit prior approval from the Client.

4. Client Responsibilities

Client agrees to:

- Provide accurate, lawful source material for content creation
 - Review and approve or reject all content presented for approval in a timely manner
 - Ensure their use of the Service complies with all applicable laws and the terms of service of all connected social media platforms
 - Not use the Service to disparage, defame, or make false statements about competitors, individuals, or other entities
 - Not submit content that infringes upon any third-party intellectual property rights
-

5. Intellectual Property

5.1 Client Content Ownership

All content created through the Service on behalf of the Client ("Client Content") is a work made for hire as defined under 17 U.S.C. § 101, and is owned exclusively by the Client upon approval. To the extent any Client Content does not qualify as a work made for hire by operation of law, Apricotter hereby irrevocably assigns all right, title, and interest in such content to the Client. Apricotter retains no ownership interest in Client Content.

5.2 Platform and Anonymized Data

Apricotter retains exclusive ownership of: (a) its platform, software, tools, processes, and workflows; and (b) "Anonymized Data," meaning aggregate, de-identified data and insights derived from platform usage that cannot reasonably be attributed to or used to identify any individual Client or their audience. Anonymized Data is used solely for platform performance, error tracking, and service improvement. Apricotter shall not use Anonymized Data for competitive intelligence against any Client, and shall not sell or license Anonymized Data to third parties.

5.3 License to Operate

Client grants Apricotter a limited, non-exclusive, royalty-free license to use, reproduce, and transmit Client Content solely as necessary to provide the Service, including publishing approved content to connected social media platforms on Client's behalf. This license terminates upon cancellation of the Service.

6. Payments, Billing, and Services

6.1 What Is Included

Your Apricotter subscription includes everything needed to run your author platform:

- **Author Website** — your own domain, fully hosted, SEO-optimized, and kept current
- **Social Automation** — content generated from your books and published across Facebook, Instagram, TikTok, and connected platforms
- **SEO + GEO** — traditional search optimization plus Generative Engine Optimization so you appear in Google and AI answer engines like ChatGPT, Claude, and Perplexity
- **Advertising** — multi-platform campaigns coordinated with your content calendar, every dollar tracked to performance
- **Analytics** — full attribution from post to click to purchase via Matomo

One price. Everything above included. No hidden fees.

6.2 Subscription and Billing

The Service is billed monthly via Stripe. Fees are charged automatically at the start of each billing period. You authorize Apricotter to charge your payment method on file for all recurring fees.

6.3 Base Price Guarantee

Your base subscription rate is locked for the life of your account. Apricotter will not increase your base price without your explicit prior acceptance — either (a) a signed written agreement, or (b) clicking an "I Agree to Updated Pricing" confirmation in the platform. Email notice alone does not constitute acceptance.

6.4 Add-On Services

The following creative services are available at additional charge, quoted and approved per project. Add-on fees are separate from and do not affect your base subscription rate:

- **eBook Production** — formatting, layout, and digital file preparation for Kindle and other distribution channels
- **Audiobook Production** — professional narration, audio engineering, and distribution-ready master files
- **Character Development** — professional creative consultation to develop, deepen, or expand characters in your manuscript or series
- **Plot Strengthening** — editorial story development — structure, pacing, arc analysis, and narrative cohesion

6.5 Satisfaction Guarantee and Refunds

If you are not satisfied with the Service for any reason, you may request a full refund for the current billing period by contacting [support email] with your account email before the end of that period. Approved refunds are returned to the original payment method within 5–10 business days. Refunds are not available for prior billing periods.

6.6 Cancellation

Cancel any time through your account settings or by emailing [support email]. Cancellation takes effect at the end of your current billing period — you keep full access through that date. No cancellation fees.

7. Data and Privacy

Apricotter collects and stores Client data including but not limited to: names, email addresses, social media account credentials, analytics, audience data, and content. This data is used solely to provide the Service.

Upon cancellation, Client may request deletion of all Client-specific data. Apricotter will complete such deletion within 30 days of a verified request. Apricotter retains aggregate, anonymized platform data that cannot be attributed to any individual Client as part of its proprietary platform expertise.

Apricotter will not sell, license, or transfer Client data to third parties except as necessary to provide the Service (e.g., Stripe for billing, social platform APIs for publishing).

8. Content Standards and Platform Compliance

Client content must comply with the terms of service and community standards of all connected third-party platforms (Facebook, Instagram, TikTok, etc.). Apricotter may refuse to publish content that in its reasonable judgment violates such standards or applicable law. Apricotter shall not be liable for content removed or accounts suspended by third-party platforms.

9. Limitation of Liability

9.1 Liability Cap

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, APRICOTTER'S TOTAL CUMULATIVE LIABILITY TO CLIENT FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICE SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

9.2 Exclusion of Consequential Damages

IN NO EVENT SHALL APRICOTTER BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF BOOK SALES, LOSS OF GOODWILL, BUSINESS INTERRUPTION, OR DATA LOSS, EVEN IF APRICOTTER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

9.3 Carve-Outs

The limitations in Sections 9.1 and 9.2 do not apply to:

- Apricotter's liability for gross negligence or willful misconduct
- Apricotter's liability for fraud or intentional misrepresentation
- Apricotter's breach of its confidentiality obligations under Section 7

- Apricotter's infringement of Client's intellectual property rights
- Either party's indemnification obligations

9.4 Essential Basis

THE PARTIES ACKNOWLEDGE THAT THE LIABILITY LIMITATIONS IN THIS SECTION REFLECT A REASONABLE ALLOCATION OF RISK AND ARE AN ESSENTIAL BASIS OF THE BARGAIN BETWEEN THE PARTIES. APRICOTTER WOULD NOT PROVIDE THE SERVICE AT THE STATED PRICE WITHOUT THESE LIMITATIONS.

10. DMCA, Copyright, and Content Indemnification

10.1 Good Faith Review

All source material submitted by Clients undergoes human review before being accepted onto the platform. This review is a good-faith measure and does not constitute a legal determination of copyright ownership or clearance.

10.2 Client Representation and Indemnification

By submitting source material to Apricotter, Client represents and warrants that Client owns or has all necessary rights, licenses, and permissions to use such material and to authorize Apricotter to create derivative content from it. Client agrees to indemnify, defend, and hold harmless Apricotter and its officers, employees, and agents from and against any claims, damages, losses, and expenses (including reasonable attorneys' fees) arising out of or relating to any claim that Client-provided source material infringes any third party's intellectual property rights.

10.3 DMCA Safe Harbor

Apricotter complies with the Digital Millennium Copyright Act (17 U.S.C. § 512) and has registered a Designated Agent with the U.S. Copyright Office as required by 17 U.S.C. § 512(c)(2). If you believe content published through the Service infringes your copyright, send a written takedown notice to:

DMCA Agent: [Name] **Email:** [dmca@apricotter.com] **Address:** [Street Address — P.O. Box not accepted]

10.4 Required Notice Elements

A valid DMCA takedown notice must include all of the following:

1. Identification of the copyrighted work claimed to be infringed
2. Identification of the specific infringing material and its URL or location
3. Your contact information (name, address, phone, email)
4. A statement that you have a good faith belief the use is not authorized by the copyright owner, its agent, or law
5. A statement that the information in the notice is accurate and, under penalty of perjury, that you are authorized to act on behalf of the copyright owner
6. Your physical or electronic signature

Notices that do not comply with all six requirements may not receive a response.

Apricotter will expeditiously remove or disable access to specifically identified infringing material upon receipt of a valid notice.

11. Resale and White-Labeling

Clients may not resell, sublicense, or white-label the Service to third parties under these Terms. Such arrangements require a separate Partner Agreement with Apricotter.

12. Dispute Resolution and Arbitration

12.1 Informal Resolution First

Before filing any arbitration, the parties agree to attempt good-faith informal resolution. The party with a dispute must send written notice to the other describing the claim and desired relief. The parties have 30 days from receipt of that notice to resolve the matter informally before proceeding to arbitration.

12.2 Binding Arbitration

If informal resolution fails, any dispute, claim, or controversy arising out of or relating to these Terms or the Service shall be resolved by binding arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules (as updated

from time to time), rather than in court. The arbitration will be conducted virtually unless both parties agree otherwise. The arbitrator's award shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

12.3 Class Action Waiver

ALL CLAIMS MUST BE BROUGHT IN THE PARTIES' INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS ACTION, COLLECTIVE ACTION, OR REPRESENTATIVE PROCEEDING. THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PERSON'S CLAIMS WITHOUT BOTH PARTIES' WRITTEN CONSENT.

12.4 Jury Trial Waiver

EACH PARTY IRREVOCABLY WAIVES ANY RIGHT TO A TRIAL BY JURY FOR ANY CLAIM ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICE.

12.5 Injunctive Relief Carve-Out

Nothing in this Section prevents either party from seeking emergency injunctive or other equitable relief in a court of competent jurisdiction where necessary to prevent irreparable harm pending the outcome of arbitration. Seeking such relief does not waive either party's right to arbitrate the underlying claim.

12.6 Severability

If any portion of this Section 12 is found unenforceable, that portion shall be severed and the remaining arbitration provisions shall continue in full force. If the class action waiver in Section 12.3 is found unenforceable, the entire Section 12 shall be null and void.

13. Governing Law

These Terms are governed by the laws of the State of [State], without regard to its conflict of law provisions.

14. Modifications

Apricotter reserves the right to modify these Terms at any time. Clients will be notified via email at least 14 days before material changes take effect. Continued use of the Service after the effective date constitutes acceptance of the revised Terms.

15. Termination

Either party may terminate the Service at any time. Upon termination, Client's access to the Service will cease at the end of the current billing period. Data deletion requests are handled per Section 7.

16. Entire Agreement

These Terms, together with the Privacy Policy and any applicable Partner Agreement, constitute the entire agreement between the parties and supersede all prior agreements regarding the subject matter herein.